

- (B) Under the Grant T&Cs, [REDACTED] is named as the Host Institution whereas [REDACTED] and [REDACTED] are named as the Partner Institutions.
- (C) The Parties wish to collaborate and undertake the Research on the terms and conditions hereinafter set out in this RCA.

NOW THEREFORE the Parties agree as follows:

1. DEFINITIONS

- 1.1 All capitalised terms which are used in this RCA and in the Schedules and Annexes but which are not otherwise defined herein shall have the same meaning as the definitions under clause 1 of the Grant T&Cs as annexed in Schedule 1. The relevant documents (including any annexures and attachments) relating to the Grant that all Parties are required to comply with, are annexed in Schedule 1, which may be updated and/or amended by Grantor from time to time ("**Grant Documents**"). Without prejudice to the above, in this RCA and in the Schedules unless defined elsewhere or the context requires otherwise:

"Cash Contribution" means actual monetary transfer from a Party to the other;

"Confidential Information" means any information or material disclosed by one Party to the other Party that is marked at the time of disclosure as confidential (or other words of similar import). Where the information is not tangible, it will be considered confidential if it is confirmed in writing as being confidential within seven (7) days of disclosure;

"Final Research Data" (or the final dataset) means a set of data that has reached the last stage of its lifecycle, where researchers have stopped making any further changes or adjustments to it;

"Inventive Contribution" means any intellectual contribution which brings about the creation of Intellectual Property, whether patentable or not, made or to be made by a Party for the Research in accordance with this RCA. For the avoidance of doubt, Inventive Contribution can include contributions such as technical guidance and expertise provided by any Party. Inventive Contribution shall be agreed between the Parties in accordance with clause 7.3;

"IP Application" means any patent application, division and all applications for registration of copyrights, designs, semi-conductor layout designs, trade names, trademarks, service marks, and any other IP registration relating to any Research IP;

"Know-how" means any method, technique, process, discovery, invention, innovation, unpatentable process, specification, recipe, formula, material, molecule, gene, protein, regulatory element, design, plan, documentation, drawing, data or other technical information which is secret, substantial and identified or at least identifiable, that is to say, described or is able to be described in a sufficiently comprehensive manner.

“Research IP” means any IP created in the course of or resulting from the Research;

“RCA” means this Research Collaboration Agreement including all Schedules and Annexes, as may be varied from time to time;

“Research Data” means data or evidence (irrespective of their content or formats) collected, observed, generated, created or otherwise obtained during the entire course of the Research, and includes but is not limited to numerical, descriptive, aural, visual, or physical forms recorded by the persons involved in the Research, or generated by equipment and/or derived from experiments, models, or simulations.

1.2 In this RCA:

- (a) A statutory provision shall include that provision and any regulations made pursuant to it, as from time to time modified or re-enacted whether before or after the date of this RCA;
- (b) “month” refers to a period starting on one day in a calendar month and ending on the day before the numerically corresponding day in the next calendar month;
- (c) The Schedules and Annexes form part of this RCA. Where there is conflict between the terms of the RCA and the Schedules, the conflicts will be resolved in the following order of priority: (i) the terms of the Grant Documents in Section 1 of Schedule 1; (ii) the terms of this RCA; and (iii) Section 2 of Schedule 1, Schedule 2, Schedule 3 and Annexes; and
- (d) Words importing the singular only shall also include the plural and vice versa where the context requires.

2. RELATIONSHIP AMONGST THE PARTIES

- 2.1 Except as stated in this RCA, no relationship of agency, joint venture or partnership shall exist or be deemed to exist amongst the Parties.
- 2.2 Nothing in this RCA shall prevent a Party from carrying out its usual course of business.

3. RESPONSIBILITIES OF EACH PARTY IN THE RESEARCH

Collaboration on the Research

- 3.1 The Parties intend to collaborate and work together on the Research, which is as set forth in Section 2 of Schedule 1.
- 3.2 The Parties agree to use their reasonable efforts to complete the Research in accordance with the terms and conditions of this RCA.
- 3.3 The Parties recognise that the Research is research and/or innovative in nature and

hence completion within the period of performance indicated in this RCA, or within the limits of financial support allocated, or the achievement of milestones and/or deliverables cannot be guaranteed.

- 3.3A The Research may be revised and amended by the Parties by written agreement, subject to the Parties' compliance with the relevant requirements in the Grant Documents, which may provide that the Grantor's prior written approval is required or that the Grantor shall be notified in writing as soon as possible or that application(s) for extension be submitted before a certain time.

Supervision / Coordination of the Research

- 3.4 The Research shall be managed by the Principal Investigator ("**PI**") named in Schedule 3, who will be assisted by the Co-Principal Investigator(s) ("**Co-PI(s)**") and Collaborators named in Schedule 3.
- 3.5 Each Party shall inform the other of any change to the PI, Co-PI(s) or Collaborator(s) (as the case may be) no later than two (2) weeks before such change is due to take place.
- 3.6 The Parties shall ensure that the PI, Co-PI(s) and Collaborator(s) shall meet at agreed intervals from time to time to review the implementation of the Research. Each Party shall bear its own costs and expenses related to such Research review meetings.
- 3.7 The Parties shall ensure that the PI, Co-PI(s) and Collaborator(s) shall maintain records of the progress of the Research, including but not limited to all expenditure incurred for or in connection with the Research, and provide each other with such records as may be required from time to time.
- 3.8 The Parties shall ensure that the Final Research Data is complete and legible, and allows traceability and validation of the Research findings should the need arise.
- 3.9 Each Party shall be responsible for the acts and/or omissions of its employees, agents and/or sub-contractors that carry out any part of the Research.
- 3.10 Each Party agrees that while its representatives are on the other Party's premises, its representatives shall adhere, at all times, to all applicable rules, regulations, policies and procedures, including, but not limited to, those on health and safety, of the other Party. Each Party hereby confirms that to the best of its information, knowledge, and belief all its representatives who are engaged in the Research have the necessary skills, expertise and training, including on laboratory safety procedures, to perform their obligations.
- 3.11 The Parties shall ensure that the PI, Co-PI(s) and Collaborator(s) carry out the Research in accordance with all applicable laws, regulations, codes and guidelines.
- 3.12 The Parties are committed to maintaining the highest standards of research integrity and the responsible conduct of research as defined in the Singapore Statement on Research Integrity. The Parties agree to cooperate in investigation(s) which result from any accusations of research misconduct and malpractice arising from this research collaboration. The Parties shall report to the Grantor all incidents or allegations of any

scientific misconduct or unethical behaviour at the earliest opportunity.

Contributions to the Research

- 3.13 The Cash Contribution by the Parties towards the Research, and the Parties' in-kind contributions to the Research, are as set forth in Schedule 2.
- 3.13A If [xxx] is not an entity incorporated or registered in Singapore, all applicable taxes and bank charges incurred in processing payment to [] (whether for Cash Contribution, licence fee or funding disbursement) shall be borne by [xxx].
- 3.14 For Cash Contribution by a Party towards the Research, upon completion of the respective deliverable, the receiving Party shall complete and submit the *Acknowledgement of Project Deliverables Form* ("**Form**") as set forth in Annex A to the paying Party. Upon receipt of the Form, the paying Party shall endorse and return the Form to the receiving Party within five (5) working days. The receiving Party shall then proceed to issue its tax invoice based on the Form endorsed by the Parties. The Form is not required for upfront Cash Contribution, or any part of the Cash Contribution payable based on project period and not based on deliverables. For such Cash Contributions, the receiving Party shall invoice the paying Party directly based on the timeline indicated in the payment schedule set out in Schedule 2. The paying Party shall make payment of the invoiced sum including any applicable GST to the receiving Party within thirty (30) days of the date of the receiving Party's tax invoice.

For funding disbursements from the Host Institution to the other Party, based on the Grant Documents, if it is decided that the Party acting as the Host Institution shall administer the funding disbursements to the other Party acting as the Partner Institution, the Party acting as the Partner Institution shall issue a requisition to the Party acting as the Host Institution on a half-yearly basis, and the Host Institution shall disburse the funds to the Partner Institution within sixty (60) days of its receipt of the relevant funds from the Grantor.

The paying Party acknowledges and agrees that non-payment of any sum under this clause 3.14 shall amount to a breach of this RCA by the paying Party, and the receiving Party shall have the right to terminate this RCA in accordance with the provisions under clause 4.3(a). In addition to other remedies provided in this RCA, subject to the relevant terms in the Grant Documents, [] reserves the right to suspend its work on the Research upon 5 working days' prior written notice and without incurring liability if the full amount of any sum due to [] hereunder has not been paid within the agreed payment deadline. The suspension of [] work in the Research for non-payment by or the insolvency of the paying Party is without prejudice to the paying Party's obligation to pay its outstanding and future sum due to [] under the RCA in full.

- 3.15 The Parties agree that the PI is allowed to vire the amounts between the categories within its employer's own budget without requiring the approval of the other Party, provided that the total budget of such employer is not affected. Any remaining amount in the respective Parties' budgets (including Cash Contributions received by []) are to be retained or used by the respective Parties as they see fit.
- 3.16 The Parties agree that [] students may be involved in the Research as part of their

learning and/or to fulfil coursework requirements of the students' degree programmes.

Compliance with Grant Documents

- 3.18 The Parties acknowledge that the use of the Grant and the performance of the Research is subject to the terms and conditions stipulated in the Grant Documents. Each Party confirms that it has received a copy of the Grant Documents, and further agrees to observe and comply with the Grant Documents.
- 3.19 The Parties agrees to cooperate with [REDACTED] in good faith and do all things reasonably necessary to enable [REDACTED] to comply with the Grant Documents and to administer and coordinate all matters relating to the Grant, including but not limited to timely provision of information, records with regard to the qualifying expenditure incurred in relation to the Research, and to provide reports reasonably requested by [REDACTED] for the purposes of meeting all reporting and auditing obligations under the Grant Documents.
- 3.20 The Parties shall comply with and fulfil all terms of the Grant Documents and do all things reasonably necessary to enable compliance and fulfilment by [REDACTED] of its obligations to the Grantor under the Grant Documents. Where any terms in the Grant Documents do not expressly apply to The Parties but directly or indirectly require its cooperation in order for [REDACTED] to comply with such terms or for the Grantor to exercise its rights under the Grant Documents, the Parties shall cooperate in good faith and do all things necessary to enable [REDACTED] to comply with such terms or the Grantor to exercise its rights.

4. RESEARCH DURATION AND TERMINATION

- 4.1 This RCA shall take effect from the start date set out in Schedule 3 ("T₀") and shall continue until the end date set out in Schedule 3, unless earlier terminated in accordance with this clause or clause 13, or unless an extension of time is approved by the Grantor.
- 4.2 [REDACTED] may terminate this RCA immediately by written notice to the other Party in the event that the Grant is terminated by the Grantor.
- 4.3 Without prejudice to the Parties' other rights under this RCA, either Party may terminate this RCA immediately by written notice to the other Party in the event:
- (a) The other Party breaches a term of this RCA and fails to remedy the breach within seven (7) days from the date it is notified of the breach;
 - (b) The other Party ceases to carry on business;
 - (c) Any mortgagee, chargee or encumbrancer takes possession, or a receiver is appointed over substantially the whole of the property or assets of the other Party;
 - (d) The other Party makes a voluntary arrangement with its creditors; or
 - (e) The other Party is under any proceedings for winding up, judicial management or liquidation;

provided that termination of this RCA upon occurrence of any event under (b) to (e) shall not be permitted where such termination is prohibited under the Insolvency, Restructuring and Dissolution Act 2018.

- 4.4 Upon termination of this RCA, each Party shall not incur any further expenditure on the Research and, if applicable, shall return to the Grantor all monies that have not been expended under the Grant.
- 4.5 For the purposes of this clause, written notice of termination may only be effected by the signatories to this RCA or by persons of equivalent or higher authority.

5. DECLARATIONS BY PARTIES

- 5.1 Each Party is an organisation duly organised, existing and registered under the laws of their respective country of incorporation.
- 5.2 Each Party has full power and authority to execute and deliver this RCA, and to carry out the Research, and such obligations shall be valid and legally binding and enforceable against it.

6A. PUBLICITY

- 6A.1 Save as otherwise provided under clause 6A.4, no Party shall make or authorise the making of any announcement, publication or other disclosure concerning the existence or subject matter of this RCA unless the other Party has given its written consent to such announcement, publication or disclosure, such consent not to be unreasonably withheld or delayed.
- 6A.2 Save as otherwise provided under clause 6A.4, the Party making the announcement, publication or disclosure shall consult with the other Party in advance as to the form, content and timing of such announcement, publication or disclosure, and/or provide a copy of the proposed announcement, publication or disclosure. If no objection is made by the other Party within one (1) month, the first-mentioned Party may proceed to publish the announcement, publication or disclosure.
- 6A.3 Save as otherwise provided under clause 6A.4, where a Party notifies the other of its objection on the basis that the announcement, publication or disclosure contains its Confidential Information or patentable material, the Parties shall work together to modify the objectionable portions so as to allow the announcement, publication or disclosure to proceed.
- 6A.4 The Parties agree that [REDACTED] may publicise the Research at [REDACTED] own platforms, provided that the publicity materials contain no Confidential Information or patentable material.

6B. PUBLICATION

- 6B.1 Any Party may publish and otherwise publicly disclose information it has gained in the course of the Research including but not limited to information relating to the Research IP ("the Publishing Party"), subject to the provisions in this clause. The Publishing Party will provide the other Party with a copy of each proposed publication or presentation in advance of publication or presentation (collectively referred to as the "Publication") and the other Party shall have twenty-one (21) days to review each

Publication to identify and notify the Publishing Party in writing of any subject matter that is the confidential information of or proprietary to that Party or which constitutes patentable subject matter; failing which that Party shall be deemed to have approved the Publication. The Publishing Party and the other Party shall, within ten (10) days of the Publishing Party's receipt of the other Party' aforesaid notice, work together to delete or modify the portions objected to by the other Party so as to allow the Publication to proceed as amended or modified or if the proposed Publication involves patentable subject matter, the Publication shall be delayed for a further period of sixty (60) days or longer as practically needed to allow for a patent to be filed. If no decision is made within the aforementioned ten (10)-day period, the Publishing Party may proceed with the Publication with the necessary deletions of the portions objected to by the other Party. The Parties shall ensure that all Publications pursuant to this clause 6B.1 above acknowledge the funding support provided by the Grantor, the scientific and other contributions of the PI, Co-PI(s), Collaborator(s) and other parties in accordance with established norms.

6B.2 The Parties agree that Publication and their Final Research Data will be deposited in [REDACTED] Institutional Repository no later than twelve (12) months after the official date of publication. The Publication and Final Research Data will be retained in [REDACTED] Institutional Repository in accordance with [REDACTED] prevailing policies, which may include being made available for access by public. Exemptions from open access or an imposition of an embargo period can be negotiated and given to projects with pending patent applications or where the proprietary nature of the contents forbids their publication and dissemination.

6B.3 For the purpose of this clause 6B, "Publication" includes preparation of and/or submission of monographs, eprints of academic journal articles, electronic theses or dissertations, conference proceedings, working papers or technical reports on the Research or relating to the Research.

For clarity, nothing in the above clauses 6A and 6B shall prevent [REDACTED] from making any report or disclosure to any governmental entity or organisation that has funded the Research in whole or in part.

7. INTELLECTUAL PROPERTY RIGHTS

Background IP

7.1 All Background IP shall remain the property of the Party introducing and/or disclosing the same to the other Party for the purposes of the Research. The Parties agree that use of such Background IP shall be limited to the performance of each Party's obligations under this RCA.

7.2 Where the use or commercialisation of Research IP requires the use of a Party's Background IP, the Parties agree that they will negotiate the licence for the use of such Background IP in good faith.

Ownership of Research IP

7.3 All Research IP shall be owned according to each Party's Inventive Contribution as follows:

(a) Any Research IP that is:

- (i) solely created or developed by a Party without any Inventive Contribution from the other Party ("**Sole Research IP**") shall be solely owned by that Party; and
- (ii) jointly created or developed by the Parties ("**Joint Research IP**") shall be jointly owned by the Parties in equal and undivided shares (each a "**Joint Owner**").

(b) Each Party's Inventive Contribution and resulting ownership of the Research IP shall be agreed on by the Parties and confirmed in writing no later than three (3) months after the expiration or earlier termination of this RCA or no later than three (3) months after the date of submission of a technology disclosure in respect of such Research IP, whichever occurs first.

Failure to agree upon each Party's Inventive Contribution or ownership of the Research IP shall be deemed to be a "**dispute**" within the meaning of clause 25.

7.3A For clarity, the rights to the joint ownership of the Joint Research IP by the relevant Party/ies are conditional upon the Parties to uphold and remain in good financial, operational, and standing order and status during the full term of the Research under this RCA.

Notwithstanding anything to the contrary in this RCA, in the event of termination in accordance with clauses 3.14 and 4.3(b) to (e) of this RCA, clauses 7.3(a)(ii) and 7.3(b) shall no longer apply. Instead, the causing Party (the Party being served the notice of termination by the other Party) shall, to the maximum extent permitted under the law, forfeit its right to the Joint Research IP and assign such right to the other Joint Owner(s) in totality, without the need for any transfer or assignment to be executed unless such transfer or assignment is required under law. The terminating Party's rights and remedies under this Clause 7.3A are independent of and without prejudice to any other rights and remedies of the terminating Party.

7.4 Each Party may assign any or all of its right, title and interest subsisting in and to its Sole Research IP, without further reference to the other Party or any obligation to obtain the other Party's consent, save that the assigning Party shall ensure that any such assignment is always subject to the rights and licences granted to the other Party under clauses 7.10 , 7.13 and 8.1.

7.5 A Joint Owner may assign any or all of its right, title and interest subsisting in and to the Joint Research IP, subject to:

- (a) the prior written consent of the other Joint Owner, whose consent should not be unreasonably withheld; and
- (b) the assigning Joint Owner shall ensure that any such assignment is always subject

to the licences granted to the other Joint Owner under clauses 7.10, 7.11 and 8.1.

- 7.6 Each Party shall promptly and fully disclose to the other Party in writing any Research IP that it may have created or developed during the Research. For the avoidance of doubt, this requirement shall apply to all Research IP developed during the Research, whether patentable or not. Such disclosure and all other relevant information shall be considered Confidential Information hereunder.

Protection of Research IP

- 7.7 In the event that any Party intends to make an IP Application for any Joint Research IP, such Party shall promptly inform the other Party of its intention, and the Parties shall negotiate in good faith and agree in writing as to the conduct of such IP Application, including on the following:

- (a) the lead Party who shall be responsible for preparing, filing, prosecuting and maintaining the IP Applications;
- (b) whether the IP Applications will be made in the Parties' joint names;
- (c) the sharing of the costs and expenses associated with preparing, filing, prosecuting and maintaining the IP Applications;
- (d) the use and commercialisation of the Joint Research IP that is the subject of the IP Applications;
- (e) the sharing of the costs and expenses incurred in the commercialisation of any Joint Research IP that is the subject of the IP Applications; and
- (f) the sharing of the revenue generated or received from the commercialisation of any Joint Research IP that is the subject of the IP Applications.

- 7.8 Sole Research IP shall be independently managed by the Sole Research IP owner at its absolute discretion, save that the Sole Research IP owner shall provide written notice to the other Party about any IP Application filed for that Sole Research IP.

Use of Research IP

- 7.9 Notwithstanding anything to the contrary in this RCA, each Party shall have the free and unfettered right and licence to use any Research IP (whether Joint Research IP or each Party's Sole Research IP) for one or more of the following purposes, as long as it is non-commercial in nature: (a) research use; (b) development use; (c) education use; (d) academic use; and (e) other non-commercial use. The foregoing right and licence do not include a right to license the Research IP to third parties for any of these purposes.
- 7.10 Notwithstanding anything to the contrary in this RCA, the Parties agree that [REDACTED] shall have a non-exclusive, perpetual, fully paid-up, irrevocable, royalty-free and worldwide right to use and license to third parties the Joint Research IP and [REDACTED] Sole Research IP for

purposes usual to an institute of higher learning and/or an autonomous university in Singapore, which include but are not limited to research, education, training and academic use.

- 7.11 Each Party agrees that it shall not have any right, title or interest in any IP derived from or developed by the other Party or its authorised third parties using the right or licences to the Research IP granted to the other Party under this RCA.
- 7.12 Each Party shall acknowledge the contribution of the PI, Co-PI(s) and Collaborator(s) towards the creation, development, discovery or invention of the Research IP in any announcement, publication or disclosure, as well as include the names of the PI, Co-PI(s) and Collaborator(s) in any patent application.
- 7.13 Neither Party warrants that the Research IP is or will be free from infringement of patents, copyrights, trademarks, or other IP rights of any third party. The Parties make no representations, conditions or warranties, either express or implied, with respect to the Research IP provided that the foregoing shall be without prejudice to the obligations relating to the conduct of the Research by the Parties in this RCA. Without limiting the generality of the foregoing, the Parties expressly disclaim any implied warranty, condition or representation that the Research IP is fit for a particular purpose, shall correspond with a particular description, is of a merchantable or satisfactory quality, or is durable for a reasonable period of time.
- 7.14 The Parties acknowledge and agree that, in accordance with the Grants T&Cs:
 - (a) the Parties shall make the details of the Research IP to the Grantor for inspection at any time;
 - (b) the management of all Research IP shall have reference to and be guided by the key principles of the Singapore National IP Protocol for Publicly Funded R&D; and
 - (c) the Parties shall reserve a royalty-free, irrevocable, worldwide, perpetual and non-exclusive right for the Government and public sector agencies to use any licensed or assigned Research IP for their statutory functions, non-commercial and/or research & development purposes. Notwithstanding the foregoing, the Parties may seek a waiver of this Clause 7.14(c) from the Grantor, if such waiver would support the effective commercialisation of the Research IP by a third party pursuant to the National IP Protocol for Publicly Funded R&D, and that any waiver would be at the Grantor's absolute discretion.

8 RESEARCH DATA

- 8.1 Each Party shall have a non-exclusive, perpetual, fully paid-up, irrevocable, royalty-free, sublicensable and worldwide right and licence to use the Research Data for its internal, research, development, academic and/or non-commercial purposes, including in collaborative research projects carried out by it with any third party, without requiring the prior consent of the other Party and without the need to make any form of payment for such use. Each Party shall also be entitled to use Research Data in publications, subject to compliance with clause 6.

- 8.2 Neither Party may grant to third parties an exclusive licence to use the Research Data without the consent of the other Party.
- 8.3 The Parties agree that, during the course of the Research, access to the Research Data shall be limited to authorised members of the project team on a need-to-use basis for the purposes of carrying out the Research. The Parties further agree that, at all reasonable times during the Term and for five (5) years after the expiration or termination of the Grant and/or the RCA, whichever is later, the Grantor and its authorised representatives shall be granted unhindered access to the Research Data.
- 8.4 Neither Party shall use or disclose the Research Data in any manner that would breach any of its obligations under law or this RCA with respect to the confidentiality, sensitivity¹, ethics and security of the Research Data.

9 ASSET OWNERSHIP

- 9.1 The Parties agree that ownership of all equipment including accessories purchased by a Party for the Research shall vest in that Party. If a Party purchases any software licence(s) for the Research, only the Party that purchases the software licence(s) for the Research shall have the right(s) to use the software.
- 9.2 The Parties agree that any remaining term of services purchased by a Party for the Research shall vest in that Party after the Research is completed.

10 CONFIDENTIALITY

- 10.1 Each Party agrees that it shall use the Confidential Information of the other Party solely for carrying out work related to the Research. No Party acquires any rights or licences in or to the Confidential Information except for a limited licence to use the Confidential Information as stated herein.
- 10.2 Each Party shall protect the confidentiality of the Confidential Information of the other Party in the same manner that it protects the confidentiality of its own similar information, but in no event using less than reasonable care.
- 10.3 Each Party shall restrict access to the Confidential Information to those of its employees (and in the case of [REDACTED] its students) who need to know the Confidential Information in order to carry out work related to the Research, provided that such parties are bound by appropriate obligations of confidentiality.
- 10.4 Each Party shall, at the option of the other Party, return or destroy the other Party's Confidential Information in its possession upon termination or expiration of this RCA, unless otherwise allowed in writing to retain such Confidential Information. Return or

¹ Sensitive data are data that can be used to identify an individual, species, object, process, or location that introduces a risk of discrimination, harm, or unwanted attention. Major familiar categories of sensitive data are personal data, health and medical data, and ecological data that may place vulnerable species at risk. It can also be proprietary data and/or other restricted or confidential data that is protected from unauthorized access.

destruction shall be certified within thirty (30) days by that Party's signatory to this RCA (or equivalent), indicating that no remaining portion of Confidential Information has been retained or copied and retained.

10.5 Nothing in this RCA shall prohibit or limit a Party's use of information (including, but not limited to, ideas, concepts, Know-how, techniques, and methodologies):

- (a) previously known to it without an obligation not to disclose such information;
- (b) independently developed by or for it without use of the other Party's Confidential Information;
- (c) acquired by it from a third party which is not, to its knowledge, under an obligation not to disclose such information; or
- (d) which is or becomes publicly available through no breach of this RCA.

10.6 Notwithstanding the foregoing, a Party shall be entitled to make any disclosure required by law, court order or by any governmental or other regulatory authority or relevant stock exchange of the other Party's Confidential Information provided that, to the extent legally permitted, the other Party is informed of the same.

10.7 The provisions of this clause 10 shall survive the expiry or earlier termination of this RCA for a period of two (2) years.

11 PERSONAL DATA PROTECTION ACT 2012

11.1 Each Party will comply with the Personal Data Protection Act 2012 and all subsidiary legislation related thereto with regard to any and all personal data received from the other Party.

12 LIABILITY AND INDEMNITY

12.1 Each Party warrants and represents to each of the other Parties that it has full authority, power and capacity to enter into this RCA, and that all necessary actions have been taken to enable it lawfully to enter into this RCA.

12.2 The Parties make no representations, conditions or warranties, either express or implied with respect to any of the Confidential Information and Background IP or Research IP disclosed to each other and/or with respect to the work performed pursuant to the terms of this RCA. Without limiting the generality of the foregoing, the Parties expressly disclaim any implied warranty, condition or representation that any use thereof will not infringe or violate any patent or other proprietary rights of any other person and disclaims that the Background IP or Research IP and/or the information provided by such Party:-

- (a) shall correspond with a particular description;
- (b) is of a merchantable or satisfactory quality;
- (c) is fit for a particular purpose; or
- (d) is durable for a reasonable period of time.

- 12.3 The Parties shall not be liable for any loss, whether indirect, consequential, punitive, or incidental, or any special loss or damage (including loss of profits, loss of use, and loss of production) however caused (and whether arising out of contract, strict liability, or tort or under any legal or equitable theory of liability) which the other Party suffers arising from any defect, error, fault or failure to perform with respect to the Background IP or Research IP.
- 12.4 Save as expressly provided in this RCA, nothing in this RCA shall be construed as a warranty or representation by the Parties as to the title of any of the Background IP disclosed hereunder or that anything made, used, sold or otherwise disposed of in connection with the same or the Research IP is or will be free from infringement of patents, copyrights, trademarks, industrial designs or other intellectual property rights of any third party.
- 12.5 Each Party shall be solely responsible and liable for (i) the acts and omissions of its authorised representatives; and (ii) its use of the Research IP, or findings, results, reports or materials from the Research.
- 12.6 Each Party shall take out and maintain sufficient insurance policies to cover its liabilities under this RCA, and produce satisfactory documentary evidence of the same upon request by any other Party. Such insurance policies may include Public Liability, Professional Indemnity, Industrial All Risk and/or Work Injury Compensation.
- 12.7 To the extent permitted by law, each Party's total liability for claims, losses or damages arising from or in connection with performance of its obligations under this RCA shall not exceed the liability cap set out in Schedule 3.
- 12.8 No Party shall be liable to the other Party for any special, indirect or consequential loss or damage or for any loss of business, income, profits or contracts arising from the second-mentioned Party's participation in the Research.

13 FORCE MAJEURE

- 13.1 If a Party ("**Affected Party**") is unable to comply with any term or condition of this RCA by reason of a Force Majeure event (as defined in clause 17.5 of the Grant T&Cs) beyond the reasonable control of the Affected Party, all Parties' obligations under this RCA shall be suspended during the time and to the extent that the Affected Party is prevented from complying with the obligations provided that it shall have first given written notice to [REDACTED] (who will in turn notify the Grantor) specifying the nature and details of such Force Majeure event and the probable extent of the suspension.
- 13.2 The Affected Party shall use reasonable efforts to minimize and reduce the period of suspension occasioned by the Force Majeure event and to remove or remedy such cause with all reasonable dispatch.
- 13.3 In the event the Force Majeure event continues for more than sixty (60) days, either Party may terminate this Agreement in writing and neither Party shall have any other liability to the other arising out of or in connection with such termination.

14 ILLEGALITY

- 14.1 The illegality, invalidity or unenforceability of any provision of this RCA shall not affect the legality, validity or enforceability of any other provision.
- 14.2 If any provision of this RCA is held by a court of competent jurisdiction to be wholly or partly illegal, invalid or unenforceable, it shall be deemed deleted. The Parties shall negotiate in good faith to agree on a replacement provision.

15 COSTS

- 15.1 Each Party will bear its own costs, fees and expenses incurred in the negotiation, preparation, execution and performance of its obligations under this RCA.

16 NOTICES

- 16.1 Each and every communication under this RCA shall be made in writing. "**Writing**" shall include email but shall not include facsimile.
- 16.2 Each communication to be delivered to a Party shall be sent to that Party at the address set out in Schedule 3 (or as may be notified by that Party from time to time), and marked for the attention of the person designated by that Party for the purpose of this RCA.
- 16.3 A communication given to a Party shall be deemed effective:
- (a) If delivered by hand, when delivered to the address stated above;
 - (b) If delivered by post, three (3) days after it is posted;
 - (c) If sent by email, at the time of transmission.

17 FURTHER ASSURANCE

- 17.1 Each Party shall do and execute or procure to be done and executed all further acts, things and documents as may be necessary to give effect to the terms of this RCA and, so far as it is able to, provide such assistance as the other Party may reasonably request to give effect to the spirit and intent of this RCA.

18 ENTIRE AGREEMENT

- 18.1 This RCA constitutes the entire agreement and understanding between the Parties relating to its subject matter.
- 18.2 No Party has entered into this RCA in reliance upon any representation, warranty or undertaking of the other Parties which is not set out or referred to in this RCA.
- 18.3 Nothing in this clause shall limit or exclude liability for fraud.

19 ASSIGNMENT

- 19.1 Except as expressly provided for in this RCA, no Party shall assign, transfer, or otherwise deal with any of its rights under this RCA nor grant, declare or dispose of any right or interest in it without the prior written consent of the other Party.

20 VARIATIONS

- 20.1 Any of the Schedules to this RCA may be amended by annexing a new Schedule in the same format that has been discussed and agreed between the Parties.
- 20.2 The new Schedule shall be signed by all Parties and shall take effect from the date the last signatory has signed off. The outdated Schedule shall be deemed cancelled on the date on which the updated Schedule is effective. Outdated Schedules shall be retained as part of the RCA.
- 20.3 Apart from the above, no other variation of this RCA shall be valid unless it is in writing and signed by or on behalf of each Party. The expression "variation" shall include any amendment, supplement, deletion, replacement or rescission.
- 20.4 Unless otherwise agreed, no variation shall constitute a waiver of any provisions of this RCA, nor shall it affect any rights, obligations or liabilities under or pursuant to this RCA which have already accrued up to the date of variation. The rights and obligations of the Parties under or pursuant to this RCA shall remain in full force and effect, except and only to the extent that they are varied.
- 20.5 A variation made in accordance with this Clause 20 shall not require consideration for the variation to be binding and enforceable.

21 REMEDIES AND WAIVERS

- 21.1 No failure on the part of any Party to exercise, and no delay on its part in exercising, any right or remedy under this RCA will operate as a waiver thereof, nor will any full or partial exercise of any right or remedy preclude any other or further exercise thereof or the exercise of any other right or remedy.
- 21.2 The rights provided in this RCA are cumulative and are not exclusive of any rights or remedies provided by law.
- 21.3 Any Party may release the liability hereunder of any other Party or grant to any such Party time or other indulgence without affecting the liability of any other Party hereunder.

22 SEVERAL OBLIGATIONS

- 22.1 All covenants, undertakings and other obligations given or entered into by the Parties are given or entered into severally unless the context otherwise requires.

23 COUNTERPARTS

- 23.1 This RCA may be signed in any number of counterparts, all of which taken together shall constitute one and the same instrument.
- 23.2 Any Party may enter into this RCA by signing any such counterpart and each counterpart shall be as valid and effectual as if executed as an original.

24 CONTRACTS (RIGHTS OF THIRD PARTIES) ACT 2001

- 24.1 A person who is not a party to this RCA has no rights under the Contracts (Rights of Third Parties) Act 2001 to enforce any term of this RCA. This does not affect any right or remedy of a third party which exists or is available apart from the said Act.

25 GOVERNING LAW AND DISPUTE RESOLUTION

- 25.1 This RCA shall be governed by, and construed in accordance with the laws of Singapore.
- 25.2 Any disputes arising out of or in connection with this RCA, including any question regarding its existence, validity or termination, shall in the first instance be resolved through meeting(s) between the senior representatives of the Parties set out in Schedule 3.
- 25.3 The Parties agree to submit to the exclusive jurisdiction of the courts of Singapore any dispute which cannot be resolved in the manner mentioned above.

26 SURVIVAL

- 26.1 Any expiration or termination of this RCA shall not affect the survival of any provision which is intended to continue after such expiration or termination, including but not limited to clauses 7 (Intellectual Property Rights), 8 (Research Data), 9 (Asset Ownership), 10 (Confidentiality), 12 (Liability and Indemnity), 25 (Governing Law and Dispute Resolution), and 26 (Survival).